

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources
Case No. CV2022-0479**

Hearing Date: **September 10, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Stewart v. The Regents**
 Case No. CV2024-2139

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Defendant James Wood, DVM's motion for summary judgment:

Defendant James Wood, DVM's request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibits B, C, and E, defendant has not shown that the Court may take judicial notice of Exhibits D and F. (See Evid. Code, § 452, subd. (d).)

Plaintiff Ashley Stewart's objections to defendants' separate statement of undisputed material facts are **OVERRULED**. (Code Civ. Proc., § 437c, subd. (f)(1); see also Cal. Rules of Court, rule 3.1350.)

Plaintiff's objection as to defendants' evidence no. 5 is **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's objections to plaintiff's evidence nos. 1 through 36 are **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's motion for summary adjudication as to plaintiff's fourth cause of action for negligence is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 602, quotation marks, brackets, and citation omitted.) While defendant challenges the breach of standard of care and causation elements, there are triable issues of material fact as to these elements, given the competing expert declarations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 970; UMF 11-12, 20, & 25.)

Defendant's motion for summary adjudication as to plaintiff's fifth cause of action for conversion is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066; see also *Enter. Leasing Corp. v. Shugart Corp.* (1991) 231 Cal.App.3d 737, 747.) Defendant has failed to satisfy its initial burden to show that cause of action has no merit. (Code Civ. Proc., § 437c, subd. (p)(2).) Specifically, defendant has not shown that his actions fell within plaintiff's authorization. (*Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 506 ["If a defendant is authorized to make a specific use of a plaintiff's